

STATE OF NEW YORK

5340--B

2025-2026 Regular Sessions

IN SENATE

February 20, 2025

Introduced by Sen. STAVISKY -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Higher Education in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law and the public health law, in relation to the administration of immunizations by medical assistants

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 6526 of the education law is amended by adding a
2 new subdivision 11 to read as follows:

3 11. Any medical assistant when drawing and administering an immuniza-
4 tion in an outpatient office setting under the direct supervision of a
5 physician, nurse practitioner, or physician assistant.

6 § 2. The public health law is amended by adding a new section 2113 to
7 read as follows:

8 § 2113. Administration of immunizations; medical assistants. Notwith-
9 standing any other law, rule, or regulation to the contrary, physicians,
10 nurse practitioners, and physician assistants are hereby authorized to
11 delegate the task of drawing up and administering vaccinations to
12 medical assistants in an outpatient office setting; provided, however,
13 that such vaccinations are recommended in accordance with regulations
14 issued by the commissioner, utilizing generally accepted medical stand-
15 ards and taking into consideration recommendations of the American Acad-
16 emy of Pediatrics, the American Academy of Family Physicians, the Ameri-
17 can College of Obstetricians and Gynecologists, the American College of
18 Physicians, the Advisory Committee on Immunization Practices, or other
19 similar nationally or internationally recognized scientific organiza-
20 tions; and provided, further, that medical assistants receive appropri-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 ate training and adequate supervision in administering immunizations
2 pursuant to regulations determined by the commissioner in consultation
3 with the commissioner of education.

4 § 3. This act shall take effect on the one hundred eightieth day after
5 it shall have become a law. Effective immediately, the addition, amend-
6 ment and/or repeal of any rule or regulation necessary for the implemen-
7 tation of this act on its effective date are authorized to be made and
8 completed on or before such effective date.